



State of New Jersey

PHILIP D. MURPHY
Governor

TAHESHA L. WAY
Lt. Governor

OFFICE OF THE STATE COMPTROLLER
MEDICAID FRAUD DIVISION
P.O. BOX 025
TRENTON, NJ 08625-0025
(609) 826-4700

KEVIN D. WALSH
Acting State Comptroller

JOSH LICHTBLAU
Director

September 11, 2024

Via overnight mail

Diamond Years Adult Medical Day Care Ctr. LLC
Alexander Gavrillov
Irina Gavrillov
Atif Waheed
360 West Clinton Street
Haledon, New Jersey 07508

Re: Notice of Overpayment
Case Number: [REDACTED]

Dear Provider:

This letter serves to inform you that the Office of the State Comptroller, Medicaid Fraud Division (MFD) reviewed Medicaid claims that Diamond Years Adult Medical Day Care (DY), [REDACTED], submitted for services from July 1, 2019 through July 19, 2023 (review period). As explained more fully below, MFD found that DY improperly submitted 277 claims to the Medicaid program for which it received overpayments totaling \$22,046.95 that it must repay to the Medicaid program.

This Notice of Overpayment for \$22,046.95 stems from MFD's review of claims submitted by DY to Medicaid Managed Care Organizations and the State Fee-For-Service program. Specifically, MFD identified the following three categories of deficient DY, claims, with the regulation violated, number of deficient claims, and dollar amounts paid noted for each category:

1. Billed in excess of five days of service in a week for an individual beneficiary (in violation of N.J.A.C. 10:164-1.6(i)) - 11 claims with overpayments of \$884.40;
2. Billed for services provided to beneficiaries who were also inpatient at a facility (in violation of N.J.A.C. 10:164-1.5(g)(3)) - 171 claims, with overpayments of \$13,702.35;

3. Billed for services for the same day, same service, and same beneficiary as another adult medical day provider (in violation of N.J.A.C. 10:49-9.8 and N.J.A.C. 10:164-1.5(g)(1)) - 95 claims, with overpayments \$7,460.20.

To obtain a file of MFD's analysis of all paid claims comprising the overpayment for the period reviewed, please contact me via email at [REDACTED]. Please include the case number, "[REDACTED]", in the subject line of any e-mail correspondence.

After reviewing MFD's analysis, if you believe that MFD failed to consider relevant documentation that may affect the number of discrepant claims and overpayment amount, you may submit to MFD information relating to such claims. If you would like MFD to consider such additional information, you must submit to MFD within thirty (30) days of the date of this letter all relevant supporting information. Should you fail to respond to MFD with your position in writing and any relevant additional documents within this thirty (30) day period, MFD will take further appropriate action, including but not limited to: issuing a Notice of Claim, Certificate of Debt, and Notice of Withholding, which would withhold a portion of your future claims payments, and/or any other remedy available to MFD by law.

If you agree with the amount of the overpayment, please mail a Certified Check in the amount noted above made payable to "Treasurer, State of New Jersey" to the address below. Please insert on the memo line of the check "[REDACTED]".

Treasurer, State of New Jersey
Division of Revenue
200 Woolverton Street, Building 20
Lockbox 656
Trenton, New Jersey 08646
Attn: Processing Bureau

Please also forward a copy of the Certified Check and the transmittal letter to my attention at Office of the State Comptroller, Medicaid Fraud Division, P.O. Box 025, Trenton, New Jersey, 08625-0025 or via email to [REDACTED].

This Notice of Overpayment documents and seeks a recovery relating to the improper billing of claims by DY. Please be advised that this Notice is a public document and, as such, may be placed on the OSC/MFD website.

In addition, please be advised that should MFD find deficiencies pertaining to the same or sufficiently similar underlying conduct for a time period after the date of this letter, pursuant to N.J.S.A. 30:4D-7(h), N.J.S.A. 30:4D-17(e), and N.J.S.A. 30:4D-57(d)(2), in addition to seeking to recover the principal owed, MFD may take further action, including imposing civil penalties against the individual provider/owners of DY - Alexander Gavrilov, Irina Gavrilov, and Atif Waheed- for such deficiencies.

Sincerely,

KEVIN D. WALSH
ACTING STATE COMPTROLLER

By: Tracy Livingston
Tracy Livingston, Assistant
Director Data and Fiscal
Medicaid Fraud Division

Copy: Don Catinello, Deputy Director, MFD
Glenn Geib, Recovery Supervisor, MFD

MFD Update - October 4, 2024

On October 4, 2024, MFD received a Certified Check dated September 26, 2024, from Diamond Adult Medical Day Care Ctr. for the full amount due \$22,046.95.